



Catalyst Trusteeship Limited

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Regd Office : GDA House, Plot No. 85, Bhusari Colony (Right), Paud Road, Pune - 411 038 Tel :- 020 66807200

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Tel:- 011 43029101/02 Email : dt@ctltrustee.com www.catalysttrustee.com CIN No. U74999PN1997PLC110262

APPENDIX- IV-A [Rule 8(6) and 9(1)]

SALE NOTICE FOR SALE OF IMMOVABLE PROPERTIES

E-Auction Sale Notice for Sale of Immovable Assets under the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 ("SARFAESI Act, 2002") read with proviso to Rule 8 (6) of the Security Interest (Enforcement) Rules, 2002.

That, ECL Finance Limited (hereinafter referred to as "ECLFL") (hereinafter collectively referred to as the "Assignor") has assigned the debts of Smaaash Entertainment Private Limited (hereinafter referred to as the "Borrower") together with underlying securities in favour of Edelweiss Asset Reconstruction Company Limited acting in its capacity as the trustee of EARC Trust SC-384 (hereinafter referred to as "EARC") vide Assignment Agreement dated June 28, 2019. Pursuant to the said assignment, EARC stepped into the shoes of the Assignor. Catalyst Trusteeship Limited has been appointed as the Debenture Trustee by the Borrower (hereinafter referred to as the "CTL"/"Trustee"), acting as a trustee in trust and for the benefit of EARC (trustee of EARC Trust SC 384).

That the Authorised Officer of CTL, in its capacity as Trustee, issued Demand Notice under Section 13(2) of the SARFAESI Act, 2002 dated July 03, 2020 ("SARFAESI Notice") calling upon the Borrower, mortgagors and guarantors Mr. Shripal Morakhia, Ms. Kalpana Morakhia, Mr. Sushil Karalkar, Mr. Paresb Patel, SAM Family Trust, AHA Holdings Pvt. Ltd., Elements Learning Centre Pvt. Ltd., Smaaash Entertainment USA Ltd. (hereinafter referred to as "Security Providers") to repay the aggregate amount mentioned in the SARFAESI Notice being Rs. 268,98,77,917/- (Rupees Two Hundred Sixty Eight Crores Ninety Eight Lakhs Seventy Seven Thousand Nine Hundred Seventeen Only), in relation to the Debenture Trust Deed dated August 17, 2017 as amended and/or supplemented by the First Supplemental Deed dated January 15, 2018 and as may have further amended from time to time, and the Debenture Trustee Agreement dated August 17, 2017 as amended or supplemented from time to time (hereinafter referred to as "Debenture Documents"), due as on June 30, 2020, payable to EARC together with interest at contractual rate, incidental expenses, cost and charges thereon, till the date of such payment, within 60 days from the date of the said notice. Since they failed to repay the aggregate amounts within the prescribed time, therefore, CTL, in its capacity as Trustee took physical possession of the below-mentioned mortgaged property/ies ("Secured Assets") on October 17, 2022 under Section 13(4) of SARFAESI Act, 2002 read with Rule 8 (1) of the Rules and other rules there under.

Notice is hereby given to the public in general and in particular to the Mortgagor(s) and Guarantor(s) that the below described Secured Assets to the Secured Creditor, the physical possession of which has been taken by the Authorised Officer ("AO") of CTL on October 17, 2022. Now, CTL acting in its capacity as Trustee of EARC (trustee of EARC Trust SC 384) exercises its rights and will sell the below described Immovable property on "As is where is", "As is what is", "Whatever there is" and "No recourse" basis on February 17, 2025 for recovery of Rs. 268,98,77,917/- (Rupees Two Hundred Sixty Eight Crores Ninety Eight Lakhs Seventy Seven Thousand Nine Hundred Seventeen Only) as on June 30, 2020 together with interest at contractual rate, incidental expenses, cost and charges thereon, till the date of repayment/realisation.

The Reserve Price and Earnest Money Deposit ("EMD") along with the description of the Immovable property shall be as follows:

Description of the Secured Asset		Reserve price	EMD
All that piece or parcel of freehold non-agricultural land for commercial use situated lying and being at Gadhiya bearing Survey No.361 of Khata No.438 of Mouje Gadhiya of Dhari Taluka in the Registration District Amreli and Sub-district of Dhari admeasuring 62423 Sq. Mtrs. or thereabouts and bounded as follows i.e. to say- On or Towards East by- Survey No. 360, On or Towards West by- Roads and Survey Nos. 352 and 354, On or Towards South by- Survey No. 356, On or Towards North by- Road and thereafter Survey No. 362. Together with all buildings and structures thereon and all plant and machinery attached to the earth or permanently fastened to anything attached to the earth and every part thereof.		Rs. 60,00,000/-	Rs. 6,00,000/-
Increment in Bidding (Rs.)	Date of Inspection	Last Date to Submit Bid	Date & time of e-Auction
2,00,000	20 January 2025 to 14 February 2025 between 11:00 AM to 05:00 PM with prior appointment	Before 05:00 PM on 16 February 2025	17 February 2025 from 11.00 AM to 01:00 PM with unlimited extensions of 5 (five) minutes each.

For detailed terms and conditions of the sale, please refer to the link provided in CTL's website and EARC's website i.e. <https://www.catalysttrustee.com> and <https://www.edelweissarc.in> respectively.

Sd/-

Date: 16.01.2025

Place: Mumbai, Maharashtra

Authorized Officer
For Catalyst Trusteeship Limited



BID DOCUMENT FOR E-AUCTION

Whereas Catalyst Trusteeship Limited (“**Catalyst**”/“**Debenture Trustee**”) acting in its capacity as debenture trustee in trust and for the benefit of Edelweiss Asset Reconstruction Company Limited (trustee of EARC Trust SC 384) (“**EARC**”/“**Debenture Holder**”), acting through its Authorised Officer, in exercise of its power under Section 13(4) & 13(12) of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (“**SARFAESI Act, 2002**”) read with Rule 6 and 8 of Security Interest (Enforcement) Rules, 2002 (rules) has decided to sell the Secured Assets through **e-Auction** as mentioned in **ANNEXURE - I** below for realization of the secured debt due to **EARC**. The sale shall be subject to the conditions prescribed in the Security Interest (Enforcement) Rules 2002 and to the following further conditions:

Auctioneer Name and Address	Catalyst Trusteeship Limited (Trustee of EARC Trust SC 384) Corporate Office: Unit No. 901, 9th Floor, Tower – B, Peninsula Business Park, Senapati Bapat Marg, Lower Parel (W), Mumbai - 400013, Maharashtra, India
Auction to be Conducted by	C1 INDIA PVT. LTD. , Udyog Vihar, Phase 2, Gulf Petrochem Building, Building No. 301, Gurgaon, Haryana-12205
Auction Schedule	Date of Auction: February 17, 2025. Timings: As per the E-Auction Notice published Auction Website: https://www.bankeauctions.com
Annexure	1) Terms & conditions of e-Auction (Annexure – I) 2) Details of Bidder (Annexure – II) <u>INSTRUCTION:</u> This document is required to be duly filled in and signed by the bidder and thereafter uploaded in the website https://www.bankeauctions.com during the time of submission of the bid. 3) Declaration by Bidder (Annexure – III) <u>INSTRUCTION:</u> This document is required to be duly filled in and signed by the bidder and thereafter uploaded in the website

	https://www.bankeauctions.com during the time of submission of the bid. 4) Affidavit (Annexure - IV) <u>INSTRUCTION</u>: This document is required to be duly filled in and signed by the bidder and thereafter uploaded in the website https://www.bankeauctions.com during the time of submission of the bid. 5) Confirmation by Bidder Regarding Receipt of Training (Annexure – V) <u>INSTRUCTION</u>: This document is required to be duly filled in and signed by the bidder and thereafter uploaded in the website https://www.bankeauctions.com just after availing training on e-Auction
Special Instructions	<u>Bidding in the last minutes and seconds should be avoided in the bidder's own interest. Neither the Service Provider nor Catalyst will be responsible for any lapses / failure on the part of the Bidder, in such cases.</u>

ANNEXURE – I

E-Auction Bidding Terms and Conditions

1. Computerized e-Auction shall be conducted by service provider **C1 INDIA PVT. LTD. (“Service Provider”)** on behalf of **Catalyst**, on pre-specified date, while the bidders shall be quoting from their own offices / place of their choice. Internet connectivity and other paraphernalia requirements shall have to be ensured by bidders themselves. Please note that failure of Internet connectivity (due to any reason whatsoever it may be) shall be sole responsibility of bidders and neither Catalyst nor **C1 INDIA PVT LTD.** shall be responsible for these unforeseen circumstances. **In order to ward-off such contingent situation, bidders are requested to make all the necessary arrangements / alternatives whatever required so that they are able to circumvent such situation and be able to participate in the e-Auction successfully. However, the Bidders are requested to not to wait till the last moment to quote their bids to avoid any such complex situations.**
2. The Service Provider shall arrange to train the bidder(s), without any cost. The Service Provider shall acquaint the bidder regarding the bidding process, functions and e-Auction rules. All the bidders are required to ensure that compliance regarding receipt of training before start of bid process.
3. **Property for Bid:** Sale of following Secured Asset by Catalyst under SARFAESI Act, 2002 -

Details Of Assets for Auction/Sale	Reserve Price	Earnest Money Deposit (EMD)
All that piece or parcel of freehold non-agricultural land for commercial use situated lying and being at Gadhiya bearing Survey No.361 of Khata No.438 of Mouje Gadhiya of Dhari Taluka in the Registration District Amreli and Sub-district of Dhari admeasuring 62423 Sq. Mtrs. or thereabouts and bounded as follows i.e. to say- On or Towards East by- Survey No. 360 On or Towards West by- Roads and Survey Nos. 352 and 354 On or Towards South by- Survey No. 356 On or Towards North by- Road and thereafter Survey No. 362 Together with all buildings and structures thereon and all plant and machinery attached to the earth or permanently fastened to anything attached to the earth and every part thereof.	Rs. 60,00,000/-	Rs. 6,00,000/-

4. **Type of Auction:** e-Auction
5. **Bidding Currency & Unit of Measurement:** Bidding will be conducted in Indian Rupees (INR) Only.

6. **Starting (Opening) Price / Bid Increment:** The opening price of the auction and the bid Increment value shall be available to the bidders on their bidding screen. The bid increment value will be **Rs. 2,00,000/-** i.e. each bid has to be increased by a **minimum of Rs. 2,00,000/-**
7. **Bid Price:** The Bidder has to quote the total price.

Procedure of e-Auctioning

- i. **e-Form Submission:** All interested bidders need to fill online form available on e-Auction domain with necessary details.
- ii. **Online e-Auction:**
 - Catalyst will declare its **Opening Price (OP)**, which shall be visible to the all Bidders during the start of the e-Auction. Please note that the start price of an item in online e-Auction is open to all the participating bidders. Any bidder can start bidding, in the online e-Auction, from the start price itself. Hence, the first online bid that comes in the system during the online e-Auction can be equal to the auction's start price, or higher than the auction's start price by one increment, or higher than the auction's start price by multiples of increment. The second online bid and onwards will have to be higher than the H1 rate by one increment value, or higher than the H1 rate by multiples of the increment value.
 - **"Bid Increase Amount"** is **Rs. 2,00,000/-** which the bidders can view on their bidding screen and the bidders will have to increase the bid amount in multiple of **"Bid Increase Amount"**. The minimum increment value in the present E-auction is **Rs. 2,00,000/-**
 - If a bidder places a bid in the last 5 (five) minutes of closing of the e-Auction and if that bid gets accepted, then the auction's duration shall automatically get extended for another 5 (five) minutes, from the time that bid comes in. Please note that the auto-extension shall be for unlimited times and will take place only if a valid bid comes in last 5 (five) minutes of closing. If valid bid is not received, the auto-extension will not take place even if that bid might have come in the last 5 (five) minutes. In case there is no bid in the last 5 (five) minutes of closing of e-Auction, the auction shall get closed automatically without any extension. **However, bidders are advised not to wait till the last minute or last few seconds to enter their bid during the auto-extension period to avoid complications related with internet connectivity, network problems, system crash down, power failure, etc.**
- iii. During e-Auction, if no bid is received within the specified time, Catalyst at its discretion may decide to revise Opening price / scrap the e-Auction process / proceed with conventional mode of tendering.
- iv. The bid once submitted by the bidder, cannot be cancelled / withdrawn and the bidder shall be bound to buy the secured Asset at the final bid price. **The failure on part of bidder to comply with any of the terms and conditions of the e-auction notice and Tender Document will result in forfeiture of the amount paid by the defaulting bidder.**
- v. The bidders will be able to view the following on their screen along with the necessary fields in the E Auction:
 - a. Leading Bid in the Auction (H1 – Highest Rate)
 - b. Bid Placed by bidder
 - c. Opening Price & Minimum Increment Value.
 - d. The bid rank of bidder in the auction.
- vi. The decision of the Catalyst regarding declaration of successful bidder shall be final and binding on all the Bidders.
- vii. The Catalyst shall be at liberty to cancel the e-Auction process / tender at any time, before declaring the successful bidder, without assigning any reason.
- viii. The Catalyst / **C1 INDIA PVT. LTD.** shall not have any liability towards bidders for any interruption or delay in access to the site irrespective of the cause.

- ix. The bidders are required to submit acceptance of the terms & conditions and modality of e-Auction given above before participating in the e-Auction in Annexure III.
- x. **Duration of Auction:** The auction of secured asset is scheduled to be conducted on day & time as specified in the E-auction notice published in the newspapers. There will be unlimited extensions of 5 (five) minutes duration each if any valid bid is received in last 5 (five) minutes of the close of auction. The bidders are cautioned not to wait till the last minute or last few seconds to enter their bid to avoid complications related to internet connectivity, network problems, system crash down, power failure, etc.
- xi. **Successful bidder:** At the end of the E-Auction, Catalyst will evaluate all the bids submitted and will decide upon the successful bidder for each Lot separately. Catalyst's decision will be final & binding on all the bidders.

E-Auction Sale – Terms & Conditions for Sale

1. The e-auction sale of Secured Assets is on “as is where is”, “as is what is”, “whatever there is” and “no recourse” basis for and on behalf of the Catalyst Trusteeship Limited (“**Catalyst**”/ “**Debenture Trustee**”) acting in its capacity as debenture trustee in trust and for the benefit of Edelweiss Asset Reconstruction Company Limited (Trustee of EARC Trust SC 384) (“**EARC**”/ “**Debenture Holder**”).
2. In respect of the Secured Assets, Secured Creditors have outstanding dues of **Rs.268,98,77,917/- (Rupees Two Hundred Sixty Eight Crore Ninety Eight Lakhs Seventy Seven Thousand Nine Hundred Seventeen Only) being due as on June 30, 2020** towards the financial assistance availed by the Borrower, together with further interest and other expenses/costs thereon and further reduce by amounts recovered after the said dates. Bid document containing detailed terms and conditions of sale can be obtained from <https://bankeauctions.com> till 16 February 2025.
3. Statutory/Government dues, if any like property taxes, sales tax, excise dues and other dues such as electricity dues, maintenance charges, etc. if any should be ascertained by the bidders.
4. For participating in online e-auction sale, Bid document, copies of PAN CARD, Board Resolution in case of Company, photo id and address proof are required to be submitted along with EMD, which is payable by way of **RTGS/NEFT** in the name of **Catalyst Trusteeship Limited**, Account No. 914020039889735, **Axis Bank**, Mumbai Fort Branch, IFSC Code No. UTIB0000004 on or before 05:00 PM on 16 February 2025. Once an Online Bid is submitted, the same cannot be withdrawn. Further if any EMD is submitted by bidder will be required to send the UTR/Ref no of the RTGS/NEFT with a copy of cancelled cheque on the e-mail id pankaj.rohilla@ctltrustee.com ; catalystlegal@ctltrustee.com and ComplianceCTL-Mumbai@ctltrustee.com .
5. The Secured Asset shall be sold by the undersigned by way of **Electronic Public Auction on February 17, 2025** through e-Auction Agency **C1 India Pvt Ltd** at their website/portal i.e. <https://bankeauctions.com> **between 11:00 A.M. to 01:00 P.M.** with auto extension clause, i.e. the end time of e-Auction will be extended by 5 (five) minutes each time if bid is made before close of e-Auction.
6. The EMD will not carry any interest.
7. The bidders may participate in the e-auction from their own office/place of their choice. Internet connectivity shall have to be arranged by each bidder himself/itself. The Authorised officer and/or the service provider shall not be held responsible for the internet connectivity, network problems, system crash down, power failure etc..
8. For details, help, procedure and online training on e-auction, prospective bidders may contact **C1 India Pvt. Ltd. as given below**

Contact numbers	+91 88666 82937
Helpline numbers	+91-124-4302020/21/22/23/24

9. The bidder will be required to submit the bid either at or above the reserve price in the prescribed manner as mentioned in Annexure II along with the EMD amount. In case the bidder fails to submit the bid on E-auction platform, then the bid amount submitted in annexure II shall be treated as final bid from the respective bidder.
10. The Successful Bidder will be required to deposit 25% (Twenty-Five Percent) of the sale price (including the EMD already deposited) on the same day or not later than next working day and the balance 75% (Seventy-Five Percent) amount of the sale price is to be paid within 15 (fifteen) days of the confirmation of sale, as the case may be. In case of failure to deposit the balance amount within the prescribed period, the amount of EMD and/or deposited amount shall stand forfeited and no claim shall be entertained against Catalyst in respect thereof.
11. The Authorised Officer shall have the right to extend the period for making the balance payment post issuance of 'Confirmation of Sale Certificate' but the same does not vest any right in favour of the highest bidder to seek additional time to make the balance payment. The aforesaid right vested in favour of the Authorised Officer to grant extension of time to make the balance payment is discretionary in nature and will be exercised by the Authorised Officer only if the Authorised Officer deems it fit and necessary. If such an extension is granted, then it may attract interest on the amount payable.
12. Authorised Officer reserves the absolute right and discretion to accept or reject any or all Bids or adjourn/postpone/cancel the sale/modify any terms and conditions of the sale without prior notice and/or without assigning any reasons in respect thereof. The decision of the Authorised Officer in this regard shall be final and binding.
13. The secured asset will be open for inspection from January 20, 2025 to February 14, 2025 between 11:00 AM to 5:00 PM after taking prior appointment of Catalyst Trusteeship Limited. The bidders are requested in their own interests, to take inspection of the asset put up for auction and satisfy themselves about the nature and condition of the said asset and other relevant details pertaining to the secured asset before submitting their bids. Statutory/Government dues if any like property tax, sales tax, excise dues and other dues if any, should be ascertained by the bidders.
14. The Secured Asset mentioned in the Bid Document is based on the charges/mortgages created by the Borrower/Mortgagor(s)/Guarantor(s) in favor of Secured Creditor/s. Interested parties are requested to verify details of the Secured Asset.
15. The Secured Asset is being sold free from charges and encumbrances of Secured Creditor/s only.
16. The Successful Bidder would be required to bear all the necessary expenses like stamp duty, registration, incidental costs, expenses including sales tax and/or any other taxes or expenses relating to sale and transfer of Secured Asset.
17. The Catalyst or the Authorised officer (AO) of Catalyst will not be held responsible for any charge, lien, encumbrance, property tax or any dues to the Government or anybody in respect of the Secured Assets.
18. Catalyst is not aware of any known statutory liabilities relating to the Secured Assets. If any such other statutory liabilities are discovered at a subsequent stage, the same shall be solely dealt with by the Successful Bidder at his own costs and expenses.
19. The sale of the Secured Asset is subject to the terms and conditions prescribed in the SARFAESI Act and Security Interest (Enforcement) Rules, 2002 and the conditions mentioned hereinabove. Hence the bidders are advised to carefully go through the said terms and conditions before submitting their bids.
20. In case there is a discrepancy between the publications of sale notice in English and Vernacular Newspaper, then in such case the English newspaper will supersede the vernacular newspaper and it shall be considered as the final copy, thus removing the ambiguity.
21. The Borrower/Guarantor(s)/Mortgagor(s) may treat this as a 30 (thirty) days' Sale Notice under Rule 8(6) read with Rule 9 of the Security Interest (Enforcement) Rules, 2002.

22. The mortgagors' and guarantors' attention are invited to the provisions of sub-section (8) of section 13 of the SARFAESI Act, 2002, in respect of time available, to redeem the secured assets.
23. The details of the secured asset are true and correct to the best of the knowledge of the Authorised Officer of Catalyst. However, interested parties are requested to inspect and verify details of the secured asset before submitting their bid. The Authorised Officer shall not be responsible for any error, mis-statement, omission in the description of the secured asset.
24. For any further clarifications regarding the sale, please contact +91 9137995433 and 022 49220555 or email at pankaj.rohilla@ctltrustee.com ; catalystlegal@ctltrustee.com and ComplianceCTL-Mumbai@ctltrustee.com

Other Terms & Conditions for Sale of the Secured Asset

1. The Authorised Officer exercising the powers under the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 read with Security Interest (Enforcement) Rules, 2002 is selling the Secured Assets and the same is being sold free from charges and encumbrances of the Secured Creditors only. Any other liabilities, including statutory liabilities if any associated with the Secured Assets shall be borne wholly by the purchaser only. The sale shall take place after expiry of 15 (fifteen) days from the date of publication of the sale notice.
2. The sale shall not take place below the reserve price.
3. Interested buyers can inspect the Secured Assets at the specified timings at their own cost, in the presence of the Authorised Officer or a representative of the Authorised Officer available at the site to facilitate the inspection. The interested buyers can, with prior appointment from Authorised Officer, inspect the security documents regarding the charged assets at their own cost, at the AO's office in the presence of the Authorised Officer or a representative of the Authorised Officer.
4. On confirmation of sales and if the terms of payment have been complied with, the AO exercising the power of sale shall issue a certificate of sale of the Secured Asset in favor of the purchaser in terms of the Security Interest (Enforcement) Rules, 2002.
5. The possession of the Secured Asset shall be handed over to the successful Bidder on receipt of the entire purchase consideration. If for any reason, the Authorised Officer is not able to deliver possession of the Secured Asset, an adjustment will be made in the price as may be agreed upon in writing between the Successful Bidder and Authorised Officer.
6. The Authorised Officer does not take any responsibility for procuring any permission, etc. or for the dues of any authority established by law. The Secured Assets are being sold free from charges and encumbrances of Secured Creditors only.
7. The interested buyers may carry out their own due diligence. They may also verify at their own cost and in their own interest the area of land and any other relevant information before submitting the Bids. They may inspect the records relating to the mortgage available with the AO with prior appointment of Authorised Officer. The Authorised Officer/Secured Creditors shall not be responsible for any discrepancy or shortfall in the Secured Assets.
8. A Bidder shall be deemed to have full knowledge of the relevant documents, Secured Assets etc. whether he/she inspects or visits or not.
9. All disputes arising amongst the parties shall be adjudicated according to Indian Law and the Courts in Mumbai alone shall have jurisdiction to entertain /adjudicate such disputes.
10. Nomination by successful bidder will not be permitted.

Sd/-

Authorised Officer

ANNEXURE-II

DETAILS OF BIDDER

(Read carefully the terms and conditions of sale before filling-up and submitting the bid)

Sr No		
1	Name of the Bidder	
2	Father's Name/Husband's Name <i>(This is applicable only if the bidder is an individual)</i>	
3	Postal Address of Bidder	
4	Cell Number & E-mail address of the bidder	
5	Bid Amount -Bid Amount should be equal to or higher than the Reserve Price	
6	EMD Amount	
7	Bank Account details of the Bidder (Provide bank details to which the EMD has to be refunded)	Bank Name: Branch: Account Holder Name: Bank A/c No: IFSC Code:
8	Date of submission of Bid	
9	PAN Number of the Bidder	
10	EMD Remittance Details (Mention the details of the Bank from which the EMD has been remitted)	Date of Remittance: Bank Name: Bank A/c No: IFSC Code:

I/We declare that I/We have read the bid document and have understood all the terms and conditions of the E-auction sale. I/We have also read and understood the contents of the E-auction notice published in the daily newspapers which are also available in the website <https://www.bankeauctions.com> I/We shall hereby undertake to abide by the terms and conditions of E-auction. I/We declare that the terms and conditions of E-auction as mentioned in the auction notice and bid document are acceptable to us. I/We also undertake to improve

my/our bid by one bid incremental value notified in the bid document if I/We am/are the sole bidder in the auction.

(Name & Signature of the Bidder)

***Mandatory: Bidders are advised to preserve the EMD Remittance Challan**

Note: This document is required to be duly filled in and signed by the bidder and thereafter the bidder shall upload the document in the website <https://www.bankeauctions.com> at the time of submission of the bid

ANNEXURE-III

DECLARATION BY BIDDER (S)

To,
The Authorised Officer,
Catalyst Trusteeship Limited
(Trustee of EARC Trust SC 384)
Unit No. 901, 9th Floor, Tower – B,
Peninsula Business Park, Senapati
Bapat Marg, Lower Parel (W),
Mumbai - 400013, Maharashtra,
India

Date:

Dear Sir,

1. I/We, the bidder/s do hereby state that, I/We have read the bid document. I/We have read the terms and conditions of the sale and have understood them fully. I/We, hereby unconditionally agree to abide with and to be bound by the said terms and conditions and agree to take part in the E-Auction.
2. I/We declare that the EMD deposited along with my/our bid was/were made by me/us as against my/our offer and that the particulars of remittance given by me/us in the bid form are true and correct.
3. I/We further declare that the information revealed by me/us in the bid document is true and correct to the best of my/our knowledge and belief. I/We understand and agree that if any of the statement/information revealed by me/us is found to be incorrect and/or untrue, the offer/bid submitted by me/us is liable to be cancelled and in such case, the EMD paid by me/us is liable to be forfeited by the Authorised Officer and that the Authorised Officer will be at liberty to annul the offer made to me/us at any point of time.
4. I/We understand that in the event of me/us being declared as successful bidder by the Authorised Officer in his sole discretion, I/We are unconditionally bound to comply with the terms and conditions of sale. I/We also agree that if my/our bid for purchase of the assets is accepted by the Authorised Officer and thereafter if I/We fail to make payments within the time lines mentioned in the terms and conditions of sale or fail to comply or act upon the terms and conditions of the sale or am/are not able to complete the transaction within the time limit specified in the bid document for any reason whatsoever and/or fail to fulfill any/all of the terms and conditions, the EMD and any other monies paid by me/us along with the bid and thereafter shall be forfeited by the Authorised Officer and I/We shall have no right to claim refund of the forfeited amount.
5. I/We also agree that in the eventuality of forfeiture of the amount by Authorised Officer, I/We can neither claim any right on the property nor on any part of the sum for which it may be subsequently sold.
6. I/We understand and agree that the responsibility of registration of the Sale Certificate is completely on the highest bidder/Successful Bidder. I/We agree that on receipt of Sale Certificate, I/We shall pay the appropriate stamp duty and registration fees and take all necessary steps for registration of the Sale Certificate.
7. I/We am solely responsible for all formalities and legal obligations related to payment of stamp duty, registration of sale certificate, payment of sales tax, levied and payable as per the laws of the immovable properties on sale of secured asset. All the necessary taxes and expenses like stamp duty, registration expenses, sales tax, etc. for transfer of Secured Assets in my/our name will be paid by me/us.

8. I/We also understand that the EMD of all bidders shall be retained by Catalyst and the EMD of the unsuccessful bidders shall be returned/refunded only after the successful conclusion of the sale of the asset and within 7 (seven) working days from the date of the E-auction. I/We state that I/We have fully understood the terms and conditions of auction and agree to be bound by the same.
9. I/We are not a willful defaulter and/or related to the Borrower and/or Guarantors and I/We do not fall under the categories provided under Section 29A of the Insolvency and Bankruptcy Code, 2016 with the Borrower Guarantor and the Secured Creditor.
10. The decision taken by Authorised Officer in all matters with respect to the E-auction shall be binding on me/us.
11. I/We are aware that the Authorised Officer will be well within his rights to amend/modify/add/delete any of the terms and conditions of the E-auction without giving any prior notice. I/We undertake to abide by the additional conditions if any announced during the E-auction and any modification/amendments made by the Authorised Officer in the terms and conditions will be binding on me/us.

Signature	
Name of the Bidder	
Postal Address	
E-mail address and contact number	

ANNEXURE-IV

[To be stamped with adequate value under the Stamp Act applicable to the particular state and duly attested by Notary Public]

AFFIDAVIT

[To be submitted by each Bidder and in case the Bidder is a consortium, then to be submitted by each member of such consortium]

I, [●], son/ daughter of [●], aged about [●] years, currently residing at [●] and having Aadhaar / Passport number [●], on behalf of [●] having its registered office at [●] ("**Bidder**") pursuant to authorization dated [_____] (as enclosed herewith), do solemnly affirm and state to Catalyst Trusteeship Limited, wherein acting in its capacity as debenture trustee in trust and for the benefit of Edelweiss Asset Reconstruction Company Limited (trustee of EARC Trust SC 384) as the creditor of [●] ("**Borrower/ Corporate Debtor**") as follows:

1. That I am duly Authorised and competent to make and affirm this instant affidavit for and on behalf of the Bidder in terms of [*resolution of its board of directors/ power of attorney/ authorised vide partnership deed dated [●]*]. I hereby unconditionally state, submit and confirm that this affidavit is true, valid and genuine.
2. I hereby unconditionally state, submit and confirm that the Bidder is not disqualified from submitting a bid in respect of the Borrower, pursuant to the provisions of the Insolvency and Bankruptcy Code, 2016 ("**Code**").
3. I hereby state, submit and declare that neither the (i) Bidder nor (ii) any person acting jointly or in concert with the Bidder nor (iii) any person who is a connected person¹ (as defined under the provisions of the Code of (a) the Bidder or (b) any person acting jointly or in concert with the Bidder):
 - (a) is an undischarged insolvent;
 - (b) is a wilful defaulter in accordance with the guidelines of the Reserve Bank of India issued under the Banking Regulation Act, 1949;
 - (c) is at the time of submission of the resolution plan a person who, (i) has an account which has been classified as non-performing asset in accordance with the guidelines of the Reserve Bank of India issued under the Banking Regulation Act, 1949 or the guidelines of a financial sector regulator issued under any other law for the time being in force, or (ii) controls or manages or is the promoter of a corporate debtor whose account has been, classified as non-performing asset in accordance with the guidelines of the Reserve Bank

¹ As per Section 29A of the Code under Explanation I to Clause (j) the expression "connected person" means:
(i) any person who is the promoter or in the management or control of the resolution applicant; or (ii) any person who shall be the promoter or in management or control of the business of the corporate debtor during the implementation of the resolution plan; or (iii) the holding company, subsidiary company, associate company or related party of a person referred to in clauses (i) and (ii).

of India issued under the Banking Regulation Act, 1949 or the guidelines of a financial sector regulator issued under any other law for the time being in force; and atleast a period of one year has lapsed from the date of such classification.

- (d) has been convicted for any offence punishable with imprisonment –
 - (i) for two years or more under any statute specified under the Twelfth Schedule of the Code and two years have not passed from the date of release from such imprisonment; or
 - (ii) for seven years or more under any law for the time being in force and two years have not passed from the date of release from such imprisonment.
 - (e) has been disqualified to act as a director under Companies Act, 2013;
 - (f) is prohibited by the Securities and Exchange Board of India from trading in securities or accessing the securities markets;
 - (g) has been a promoter or in the management of or control of a corporate debtor² in which any preferential transaction or undervalued transaction or extortionate credit transaction or fraudulent transaction has taken place and in respect of which an order has been made by the Hon'ble National Company Law Tribunal (or its appellate tribunal / court) under the Code (other than a preferential transaction, undervalued transaction, extortionate credit transaction or fraudulent transaction which has taken place prior to the acquisition of the corporate debtor by the Bidder and the Bidder has not otherwise contributed to the preferential transaction, undervalued transaction, extortionate credit transaction or fraudulent transaction);
 - (h) has executed a guarantee in favour of a creditor, in respect of a corporate debtor against which an application for insolvency resolution made by such creditor has been admitted under the Code where such guarantee has been invoked by the creditor and remains unpaid in full or part; and
 - (i) is subject to any of the aforesaid conditions under any law in a jurisdiction outside India.
4. That the Bidder unconditionally and irrevocably represents, warrants and confirms that it is eligible under the terms and provisions of Section 29A of the Code and the rules and regulations thereunder to submit a bid and that it shall provide all documents, representations and information as may be required by Catalyst Trusteeship Limited to substantiate to its satisfaction that the Bidder is eligible under the Code and the rules and regulations thereunder to submit a bid in respect of the Corporate Debtor.
5. That the Bidder unconditionally and irrevocably undertakes that it shall provide all data, documents and information as may be required to verify the statements made under this affidavit.
6. That the Bidder agrees that to Catalyst Trusteeship Limited is entitled to rely on the statements and affirmations made in this affidavit for the purposes of determining the eligibility of the Bidder.

² As per Section 3(8) a "corporate debtor" means a corporate person who owes a debt to any person;

7. That in the event any of the above statements are found to be untrue or incorrect, the Bidder unconditionally agrees to indemnify and hold harmless to Catalyst Trusteeship Limited against any losses, claims or damages incurred by Catalyst Trusteeship Limited and all monies received by Catalyst Trusteeship Limited from the Bidder shall stand forfeited.
8. That the Bidder agrees and undertakes to disclose/inform forthwith, to Catalyst Trusteeship Limited, if it becomes aware of any change in factual information in relation to it or its connected person (as defined under the Code) which would make it ineligible to submit a bid under any of the provisions of the Code, after the submission of this affidavit.
9. That this affidavit shall be governed in accordance with the laws of India and the courts of Mumbai shall have the exclusive jurisdiction over any dispute arising under this affidavit.

SOLEMNLY AFFIRMED AT:

ON THIS THE [_____] DAY OF [_____] 2025.

DEPONENT

VERIFICATION

I, [●], the deponent above named, on behalf of [●], having registered office at [●], do hereby verify and state that the contents of the above affidavit are true to the best of my knowledge and nothing material has been concealed therein.

Verified at [●], on this the [●] day of [●] 2025.

DEPONENT

ANNEXURE – V

Confirmation by Bidder Regarding Receipt of Training

To,

The Authorised Officer,
Catalyst Trusteeship Limited,
Unit No. 901, 9th Floor, Tower – B,
Peninsula Business Park, Senapati
Bapat Marg, Lower Parel (W),
Mumbai - 400013, Maharashtra,
India

Subject: Confirmation regarding receipt of e- Auction Training.

Sir/Madam

This has reference to the terms & conditions for the e-Auction scheduled on February 17, 2025 as mentioned in the sale notice, Bid Document and available on the website

I/We confirm that:

1. I/We have read and understood the terms and conditions governing the E-Auction as mentioned in sale notice and bid document available on the website <https://bankeauctions.com> and also sale notice published by **Catalyst Trusteeship Limited** Ltd in the newspapers and I/We unconditionally agree to the said terms and conditions of the E-auction.
2. I/We also confirm that we have taken training on the online bidding/auction and confirm that we are fully conversant with the functionality and process.
3. I/We confirm that **Catalyst Trusteeship Limited** and **C-1 India Pvt Ltd.**, shall not be liable & responsible in any manner whatsoever for my/our failure to access & bid on the E-auction platform due to loss of internet connectivity, electricity failure, virus attack, problems with the PC, any other unforeseen circumstances etc. before or during the auction event.
4. I/We, hereby confirm that we will honour the bid placed by us during the e-Auction process.

Signature	
Name of the Bidder	
Postal Address	
E-mail address and contact number	